

Anchal Sharma And Ors vs Ut Of J&K And Anr on 16 October, 2024

Sr. No. 89

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

CRM(M) No. 356/2022

Anchal Sharma and Ors.

.... Petitioner (s)

Through :- Mr. Jatinder Singh, Advocate.

V/s

UT of J&K and Anr.

....Respondent(s)

Through :- Ms. Sarita Kumari, Advocate for R-2

Coram: HON'BLE MR. JUSTICE MOHD. YOUSUF WANI, JUDGE

ORDER

(16.10.2024)

1. Through the medium of the instant petition filed under Section 482 of the Code of Criminal Procedure, 1973 (hereinafter to be referred as the 'Code'), the petitioners have sought the quashment of FIR No. 0028/2021 dated 03.02.2021, that came to be registered by the Police Station, Satwari under Sections 279/337/504 IPC against them on the complaint of respondent No.2.

2. This Court on presentation of the instant petition, vide ad interim order dated 06.05.2022, while giving liberty to the Investigating Officer to proceed with the investigation, directed him to await the orders of the court for presentation of the final report/challan.

3. Today, respondent No. 2, Geeta Devi W/o Late Sh. Parshotam Dass R/o Rohi Morh Gadigarh, Jammu appeared in person, whose identity has been ascertained. She submitted that she has compromised the dispute with the petitioners which was the outcome of the matrimonial discard between the daughter of the petitioner No.3, namely, Arzoo Sharma and her son, namely, Ajay Sharma. The respondent No. 2, who has filed the FIR in question, submitted that she has resolved all the issues with the petitioners, as such, she wants that the present petition filed by the petitioners for quashment of the FIR may be allowed. She submitted that Arzoo Sharma and Ajay Sharma have

through mutual settlement resolved to dissolve their marriage in connection whereof, they have filed an application for decree of dissolution of marriage before the concerned court.

4. It is submitted by Mr. Jatinder Singh, learned counsel for the petitioners, that Hon'ble Supreme Court has in case titled B. S. Joshi Vs. State of Haryana; AIR (2003) SC 1386 allowed the quashment of FIR pursuant to the mutual compromise between the husband and the wife, leading to the dissolution of marriage.

5. Having heard learned counsel for the parties and keeping in view the fact that parties have decided to dissolve the marriage between one of the daughters of the petitioner No. 3 and son of respondent No.2, pursuant to which a petition under the provisions of the Hindu Marriages Act, 1955, is reported to have been filed by them before the competent court for decree of dissolution of marriage, this Court is of the considered opinion that it will meet the ends of justice in case this Court quashes the FIR in question by invoking its inherent powers vested under the provisions of Section 482 of the Code to inter alia pass any order for securing the ends of justice. The quashment of FIR in question is likely to set at rest long controversy between the contesting parties.

6. Although this Court is of the opinion that an FIR and the consequent charge-report culminating from the investigation cannot be generally and in a routine manner allowed to be quashed in exercise of the powers under Section 482 of the Code corresponding to Section 528 of Bharatiya Nagrik Suraksha Sanhita, 2023 ('BNSS' for short), on the mere ground that the parties have settled their controversy that had become the cause of the occurrence, yet the provisions of Section 320 of the Code corresponding to Section 359 of the BNSS do not restrict the powers of this Court vested in it under Section 528 of BNSS to quash the FIR and the consequent investigation process in exceptional circumstances for furthering the cause of justice especially in cases where the matrimonial disputes involving two families are amicably settled subsequent to registration of the FIR.

7. Notwithstanding, the satisfaction of this Court to allow the instant petition in the backdrop of the settlement between the parties, it is needful to mention that in case the FIRs and the criminal cases culminating from the investigations are allowed to be quashed in a routine manner and at the wish of the complainants and/or accused, the criminal justice system is likely to become a causality and the society at large will have to bear the consequences.

8. Both the repealed Code of 1973 and the new Code of 2023 as per the provisions respectively contained under Sections 320(9) and 359(9) provide that no offence shall be compounded except as provided under the said sections.

9. The provisions of the Section 320 of the Code corresponding to the Section 359 of BNSS do not restrict but limit and circumvent the powers of this Court under Section 482 of the Code corresponding to Section 528 of the BNSS regarding quashment of FIRs and criminal proceedings, for the sake of the society at large, which is the real beneficiary of the criminal justice delivery system.

10. It has been held by the Hon'ble Apex Court in *Gopakumar B. Nair Vs. CBI*; (2014) 5 SCC 800 that, "Though quashment of non- compoundable offence under Section 482 Cr. P.C. following settlement between parties would not amount to circumvention of Section 320, but such power has to be exercised with care and caution and would depend on facts of each case."

11. The Hon'ble Apex Court in the case referred to by the learned counsel for the petitioners has almost under similar situation allowed the quashment of FIR that was also registered on the complaint of wife pursuant to the mutual settlement of the parties leading to dissolution of marriage.

12. It is profitable to reproduce the relevant paras of the authoritative judgment referred to by the learned counsel for the petitioners:

"There is no doubt that the object of introducing Chapter XX- A containing Section 498-A in the Indian Penal Code was to prevent the torture to a woman by her husband or by relatives of her husband. Section 498-A was added with a view to punishing a husband and his relatives who harass or torture the wife to coerce her or her relatives to satisfy unlawful demands of dowry. The hyper-technical view would be counterproductive and would act against interests of women and against the object for which this provision was added. There is every likelihood that non-exercise of inherent power to quash the proceedings to meet the ends of justice would prevent women from settling earlier. That is not the object of Chapter XX-A of Indian Penal Code.

In view of the above discussion, we hold that the High Court in exercise of its inherent powers can quash criminal proceedings or FIR or complaint and Section 320 of the Code does not limit or affect the powers under Section 482 of the Code."

13. For the foregoing discussion, the instant petition is allowed and the impugned FIR along with the investigation proceedings conducted pursuant to the registration of the same by the Investigating Officer of the case is quashed.

14. Registrar Judicial is directed to record the statement of appearing parties upon their identification.

15. With the aforesaid direction, the present petition stands disposed of along with connected CM(s).

(Mohd. Yousuf Wani) Judge JAMMU 16.10.2024 Eva Whether the order is speaking? No. Whether the order is reportable? No.